

The Personal Assistant to the Inspector-General of Prisons, Uttar Pradesh Service Rules, 1968

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State of Uttar Pradesh - Act

The Personal Assistant to the Inspector-General of Prisons, Uttar Pradesh Service Rules, 1968

UTTAR PRADESH

India

The Personal Assistant to the Inspector-General of Prisons, Uttar Pradesh Service Rules, 1968

Rule

THE-PERSONAL-ASSISTANT-TO-THE-INSPECTOR-GENERAL-OF-PRISONS-UTTAR-PRADESH-SERVICE-RULES-1968 of 1968

Published on 16 May 1968

Commenced on 16 May 1968

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The Personal Assistant to the Inspector-General of Prisons, Uttar Pradesh Service Rules, 1968

Published vide Notification No. 1553/22-1384-61, dated 16th May, 1968

In exercise of the powers under the proviso to Article 309 of the Constitution of India and in supersession of all existing rules and orders on the subject the Governor of Uttar Pradesh is pleased to make the following rules regulating recruitment to, and the conditions of Service of persons appointed to the post of Personal Assistant to the Inspector-General of Prisons, Uttar Pradesh:

Part I ? General

1.

Short title and commencement.

- These rules may be called the Personal Assistant to the Inspector-General of Prisons, Uttar Pradesh Service Rules, 1968 and shall come into force with effect from the date of their publication in the Official Gazette.

2.

Status.

- The post of Personal Assistant to the Inspector-General of Prisons, Uttar Pradesh, is a subordinate gazetted ministerial post.

3.

Definitions.

- In these rules, unless there is anything repugnant in the subject or context,-

(a)

"Commission" means the Public Service Commission, Uttar Pradesh;

(b)

"Committee" means the Selection Committee referred to in Rule 8 (4);

(c)

"Constitution" means the Constitution of India;

(d)

"Government" means the Government of Uttar Pradesh;

(e)

"Governor" means the Governor of Uttar Pradesh;

(f)

"Inspector General" means the Inspector-General of Prisons, Uttar Pradesh;

(g)

"Post" means the post of Personal Assistant to the Inspector-General of Prisons, Uttar Pradesh;

(h)

"Secretary" means the Secretary, Uttar Pradesh, Home Department (Jails).

Part II ? Cadre

4.

Strength of the Service.

- The post is an individual post:

Provided that the Governor may-

(1)

Leave unfilled or hold in abeyance the post when vacant without thereby entitling any person to compensation, or

(2)

create one or more other permanent or temporary posts from time to time as may be found necessary.

Part III ? Recruitment

5.

Source of Recruitment.

- Recruitment to the post shall be made by promotion in consultation with the Commission from amongst the permanent Superintendents in the office of the Inspector-General.

Part IV ? Qualifications

6.

No person shall, ordinarily, be appointed to the Service unless he be less than 53 years of age on the first day of January of the year in which the selection is made or, if he is already officiating, he was less than 53 years of age on the date from which he has been continuously so officiating.

Part V ? Procedure For Recruitment

7.

Age. Criteria for selection.

- For purposes of recruitment to the post, selection strictly on merit shall be made from amongst the officials who are eligible for promotion under Rule 5.

8.

Procedure for making selection.

(1)

Whenever it is decided to make a substantive appointment to the post, the Secretary, in consultation with the Inspector-General, shall consider the cases of all the officials eligible for promotion and shall draw up, in order of merit, a list of candidates considered most suitable for promotion, containing names double the number of available vacancies.

(2)

The Secretary shall also in consultation with the Inspector-General draw up in order of merit another list containing the name of an official whom he considers suitable for appointment in officiating or temporary vacancy likely to occur during the course of the year.

(3)

These two lists, together with a gradation list giving therein the reasons for passing over the seniors, if any, and the character rolls of all eligible candidates shall be sent to the Commission. The Commission shall examine the rolls and may add any new names to either of the two lists, if they consider it necessary to do so, and return them to Government.

(4)

The Secretary shall then, in consultation with the Commission, fix a date for interviewing such of the candidates whose names are contained in the final list drawn up by the Commission. These candidates shall be interviewed by a Selection Committee consisting of-

(a)

a representative of the Commission who shall preside over the Committee;

(b)

The Secretary; and

(c)

The Inspector-General.

(5)

The names of candidates after interview for substantive and officiating or temporary appointment shall then be forwarded by the Commission to the Government with their recommendations.

(6)

The official recommended by the Commission for substantive appointment shall be appointed against such a vacancy and the official recommended for officiating or temporary appointment shall be offered such a vacancy as and when it occurs during the course of the year. The list drawn up for officiating or temporary appointment shall hold good for one year or until the next selection whichever is later.

(7)

If a substantive vacancy does not occur for two consecutive years and it becomes necessary to make a selection for officiating or temporary vacancy only the above procedure shall be followed but, in such cases, it will be open to the Selection Committee to dispense with the interview of such of the candidates as may have already been interviewed at a previous selection.

Part VI ? Appointment, Probation and Confirmation

9.

Appointment.

(1)

On the occurrence of a substantive vacancy appointment to the post shall be made by the Governor from amongst the candidates found most suitable for appointment under sub-rule (6) of Rule 8.

(2)

The Governor shall make appointments in temporary or officiating vacancies from the select list prepared under sub-rule (4) of Rule 8, in the order in which the names of candidates appears in that list. But if the select list has been exhausted the Governor may, without consulting the Commission, make appointments in such vacancies for a period not exceeding one year from amongst the officials who are eligible for permanent appointment to the post under these rules, provided that if the vacancy is expected to last for a period exceeding one year, the Commission shall be consulted in making such appointments.

(3)

All appointments made under this rule shall be notified in the official Gazette.

10.

(1)

A person on appointment to the post in or against a substantive vacancy shall be placed on probation for a period of one year.

(2)

The period of probation will count from the date taken over charge of the appointment.

(3)

Continuous service rendered in officiating or temporary capacity on the post, with the approval of the Commission, may at the discretion of the Governor, be taken into account in computing the period of probation.

(4)

The Governor may, for sufficient reasons extend the period of probation up to a period not exceeding one year. Any such extension shall specify the exact date up to which the extension is granted.

(5)

If it appears at any time during the period of probation or extended period of probation that probationer has not made sufficient use of his opportunities or has otherwise failed to give satisfaction he may be reverted to his substantive post without entitling him to any compensation.

11.

Confirmation.

(1)

A probationer shall be confirmed in his appointment at the end of the period of probation or the extended period of probation as the case may be if he is considered fit for confirmation and his integrity is unquestionable.

(2)

A confirmation under this rule shall be notified in the official Gazette.

Part VII ? Pay

12.

Scale of Pay.

- The scale of [pay]

[See now Revised Pay Scale.]

admissible to a period to the post whether in a substantive or officiating capacity or as a temporary measure shall be Rs. 400-25-500-E.B.-25-550.

13.

Pay during probation.

- The pay during probation of person appointed to the post shall be regulated by the relevant rule referred to in Rule 16.

Part VIII ? Other Provisions

14.

Canvassing.

- No recommendation for recruitment except as provided in these rules shall be taken into consideration. Any attempt on the part of a candidate to enlist support directly or indirectly for his candidature shall disqualify him for appointment to the post.

15.

Relaxation of service rules in cases of undue hardship.

- Where the Governor is satisfied that the operation of any of these rules causes undue hardship in any particular case, he may in consultation with the Commission, notwithstanding anything contained in the rules applicable to the case, by order dispense with or relax the requirements of that rule to such an extent and subject to such conditions as may be considered necessary for dealing with the case in a just and equitable manner.

16.

Application of General Rules in matters not covered by these Rules.

- In regard to matters not specifically covered by these rules or orders made or issued thereunder, or by special order in relation to this post, the incumbent of the post shall be governed by the rules, regulations and orders applicable generally to Government servants serving in connection with the affairs of Uttar Pradesh.

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